

**IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)**

**Present:**

**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No. 730 of 2004**

**IN THE MATTER OF:**

An application under section 115(1) of the Code  
of Civil Procedure.

(Against Judgment & Decree)

And

**IN THE MATTER OF:**

Sree Subrata Das died leaving behind his legal  
heirs 1(Ka)-1(Kha) and others

--- Plaintiff - Petitioners.

-versus-

Bangladesh, represented by the Deputy  
Commission, Sylhet and others

--- Opposite Parties.

**Mr. Nirmalendu Deb** with

**Mr. Bhim Charan Roy** and

**Ms. Sharmin Rubayat Islam**, Advocates

--- For the Plaintiff- Petitioners.

**Mrs. Kazi Shahanara Yeasmin**, DAG with

**Mr. Md. Humayun Kabir**, AAG

--- For the Opposite Parties.

**Heard on: 03.11.2022, 30.11.2022, 01.12.2022  
and 24.01.2023.**

**Date of Judgment: 24.01.2023.**

At the instance of the present plaintiff-defendant-petitioners,  
Sree Subrata Das and others, this revisional application has been  
filed under section 115(1) of the Code of Civil Procedure and the  
Rule was issued calling upon the opposite party No. 1 only at the  
risk by the petitioners to show cause as to why the impugned

judgment and decree dated 17.02.1999 respectively passed by the learned Subordinate Judge and Artha Rin Adalat, Sylhet in the Title Appeal No. 215 of 1984 allowing the appeal and dismissing the suit by reversing the judgment and decree dated 15.05.1984 passed by the learned Munsif, Sadar, Court No. 2, Sylhet in the Title Suit No. 217 of 1979 decreeing the suit should not be *set aside*.

The relevant facts for disposal of this Rule, *inter-alia*, are that the predecessor of the present petitioners Sree Surendra Kumar Das as the plaintiffs filed the Title Suit No. 217 of 1979 against the defendant for declaration that the suit land was not acquired by the Government as the land was recorded in the names of the defendant Nos. 1 and 2 which are wrong. The plaint contains that one Rukhimini Kumar Das Purakayestha and others were the owners and possessors of the schedule No. I land described in the plaint. Thereafter, Shyma Charan Das and Joy Ram Das took settlement from the said Rukhmini Kumar Das Purakayestha and others by obtaining a Patta (পাট্টা) and giving a Kabuliat (কবুলিয়ত) on 30 Ashar, 1332. By amicable partition, Shyma Charan Das got the suit land in schedule No. II and Joy Ram Das got rest suit land in schedule No. I. Shyma Charan Das died leaving behind his only son Surendra Kumar Das who possessed the land by running a shop thereof but the land was wrongly recorded in the name of the defendant No. 2, the Deputy Commissioner, Sylhet represented for the Government

of Bangladesh. The father of the plaintiff Surendra Kumar Das earlier instituted the Miscellaneous Case No. 357 of 1969 for correction of the record and subsequently the same was withdrawn. Subsequently, when he was taking preparation for filing another appropriate suit he died leaving behind the present plaintiff (son) as his only heir who became the owner of the shop and the land was not within the periphery of hat-bazar, even though, the shop was far away from the periphery of hat-bazar. There was an investigation as per the order of the court and investigation was conducted by an Investigation Officer and a report was given in favour of the present petitioners.

The present defendant No. 1, the Deputy Commissioner, Sylhet contested the suit by filing a written statement contending that the suit land belongs within the periphery of Goalabazar, thus, it was recorded in the schedule No. I as khas property because of the situation of shop within the periphery of hat-bazar. Accordingly, it was rightly recorded in the schedule No. I as khas property. The claim of the plaintiffs as to the settlement of the land by way of the Pattat (পাট্টা) and Kabuliat (কবুলিয়ত) thereof are false and the suit is barred by limitation.

After hearing the parties the learned the then Munsif, Sadar, Court No. 2, Sylhet decreed the suit by his judgment and decree dated 15.05.1984. Being aggrieved the present opposite party No.

1, the Deputy Commissioner, Sylhet on behalf of the Government of Bangladesh preferred the Title Appeal No. 215 of 1984 in the court of the learned District Judge, Sylhet which was subsequently heard by the learned the then Subordinate Judge (Joint District Judge) and Artha Rin Adalat, Sylhet who after hearing the parties and considering the evidence as well as depositions of PWs and DWs came to a conclusion to allow the appeal by reversing the judgment and decree of the learned trial court. Being aggrieved the present petitioners filed this revisional application under section 115(1) of the Code of Civil Procedure challenging the legality and propriety of the impugned judgment and decree and this Rule was issued by this court thereupon.

Mr. Nirmalendu Deb, the learned Advocate, appearing along with the learned Advocates, Mr. Bhim Charan Roy and Ms. Sharmin Rubayat Islam on behalf of the petitioners, submits that the impugned judgment of reversal is bad in law inasmuch as the learned appellate court has misconstrued the provisions of section 20 of the State Acquisition and Tenancy Act, 1950 and the definition of hat and bazaar in the light of settle principles thereof and treating the suit land as non-retainable land without considering that the defendant gave no specific description or periphery of their so-called Goalabazar or of the so-called non-retainable land while

the DW-1 himself stated in evidence that “নালিশী জায়গা হইত ১ ফালং দূর মাছ পান এর বাজার।”

The Rule has been opposed by the present opposite party Nos. 1, the Deputy Commissioner, Sylhet.

Mrs. Kazi Shahanara Yeasmin, the learned Deputy Attorney General, appearing along with the learned Assistant Attorney General, Mr. Md. Humayun Kabir, for the opposite party No. 1, submits that the learned trial court committed an error of law by decreeing the suit on the basis of Patta (পাট্টা) and Kabuliat (কবুলিয়ত) thereof through an amicable settlement on the basis of the evidence provided by the parties and ignoring the evidence provided by the present opposite party No. 1, the Government of Bangladesh represented by the Deputy Commission, Sylhet, however, the learned appellate court below reversed the said judgment considering the Exhibit-2(Ka) being a record of right in the name of Khas Khatian No. I by operation of the year of 1950. Even though, the plaintiffs claimed that the suit property was the subject matter of a settlement prior to the operation of this Act, 1950. Accordingly, the learned appellate court below rightly considered and decided to allow the appeal by reversing the judgment and decree of the learned trial court, as such, the Rule is liable to be discharged.

The learned Deputy Attorney General also submits that the present petitioners as the plaintiffs filed the suit beyond the limitation period described in the Limitation Act as the suit was filed after 3 (three) years, 4 (four) months and 6 (six) days, as such, the suit is barred by limitation but the present petitioners obtained the present Rule by misleading the court, as such, no interference from this court is called for.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed by the plaintiff-petitioners under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree and also perusing the needed materials available in the records of the lower courts below, it appears to me that the present petitioners as the plaintiffs filed a title suit claiming correction of record of right and also for claiming jote (জোত) title upon the schedule land described as the schedule Nos. I and II in the plaint. The petitioners claimed that the suit land originally belonged to one Rukhmini Kumar Das Purakayestha who settled the land in favour of the predecessor of the plaintiffs by way of Patta and a Kabuliat thereon which has been exhibited as Exhibit-I by the present petitioners. The petitioners also claimed that the land/shop is situated 1 farthing far away from the hat-bazar, as such, it cannot be within the

periphery of hat-bazar as per section 20 of the Act, 1950. On the other hand, the opposite party No. 1, the Government of Bangladesh claimed that as the suit property entered in the record of right as No. I khas khatian land which has been exhibited as Exhibit No. 2(A), as such, the suit property is within the periphery of hat-bazar under section 20 of the State Acquisition and Tenancy Act, 1950.

Now, this court has to take a decision on who should be the owner of the land on the basis of the above legal and factual aspects. In order to answer this question, I am going to the exhibits from the lower courts record as well as the revisional application filed by the present petitioners and I found that having considered the exhibits produced by the parties to prove their own case but when a land is acquired by operation of law the strength of the case becomes more powerful because the provision of law must prevail over any kind of oral and documentary evidence. In the instant case, the learned trial court committed an error of law by believing the evidence of Patta and Kabuliat which acquisition of the suit property section 20 of the State Acquisition and Tenancy Act, 1950, even though, the Act became operative in the year of 1950-63 in different districts of Bangladesh.

In view of the above, I am of the opinion that the Government of Bangladesh, the present opposite party No. 1,

represented by the Deputy Commission, Sylhet included the suit land/shop within the periphery of hat-bazar, even though, the Government failed to provide any specific record thereabout.

In view of the above, I consider that this Rule was issued upon the misleading evidence about the record of rights published as Khas Khatian No. I. Pursuant to the above findings this Rule does not require any further consideration.

Accordingly, I do not find any merit in this Rule.

In the result, the Rule is hereby discharged.

The impugned judgment and decree dated 17.02.1999 passed by the learned the then Subordinate Judge (Joint District Judge) and Artha Rin Adalat, Sylhet in the Title Appeal No. 215 of 1984 allowing the appeal and reversing the judgment and decree dated 15.05.1984 passed by the learned Munsif, Sadar, Court No. 2, Sylhet in the Title Suit No. 217 of 1979 is hereby upheld.

The interim direction passed by this court at the time of issuance of the Rule to maintain *statusquo* by the respective parties in respect of the possession and position and subsequently the same was extended from time to time and lastly, it was extended till disposal of the Rule are hereby recalled and vacated.

The pertinent section of this Court is hereby directed to send down the lower courts record along with a copy of this judgment and decree as soon as possible.